

Petitioner v. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. and others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 6 October 2025 · Writ-C No. 9431 of 2025 · **Petition disposed; petitioner directed to complain under para 6.5(b); recovery stayed four weeks.**

HEADNOTE

A consumer disputing the accuracy of an electricity bill must invoke paragraph 6.5(b) of the U.P. Electricity Supply Code, 2005 (payment under protest of the amount claimed or the average of the preceding six months' bills, whichever is less, and a complaint to the competent authority). A writ to quash a recovery citation and rectify bills, without that complaint, is disposed of with a direction to file it; recovery may be kept in abeyance pending the Executive Engineer's decision.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 26 August 2025 for Rs.2,98,000 issued towards electricity dues, alleging that Madhyanchal Vidyut Vitran Nigam Limited had generated an exorbitant bill in an irregular manner. He claimed to have represented to the Executive Engineer on 5 July 2024, which remained undisposed. Counsel for the distribution licensee pointed to the statutory complaint under paragraph 6.5(b) of the U.P. Electricity Supply Code, 2005. The Court recorded that no representation under that provision had been made.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing complaint; alternate remedy

HOLDING

A consumer who disputes the accuracy of a bill must proceed under paragraph 6.5(b) of the Supply Code, 2005: pay under protest the amount claimed or the average of the preceding six months' bills, whichever is less, and file a complaint with the competent authority. The writ was disposed of with a direction to lodge that complaint within ten days with the Code deposit; the Executive Engineer is to pass a reasoned order within ten days thereafter, and the impugned recovery remains in abeyance for four weeks or until that decision.

¶ 4-7

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The 5 July 2024 representation to the Executive Engineer was not treated as a paragraph 6.5(b) complaint; the Court directed a proper 6.5(b) complaint with the Code deposit, to be decided by the Executive Engineer. ¶ 4-6

clause-6.5b-quantification-dispute Challenge to an allegedly exorbitant bill and a recovery citation of Rs.2,98,000 is a quantification dispute for paragraph 6.5(b), not for writ on merits. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILLS AND VALIDITY OF THE RECOVERY CITATION DATED 26.8.2025 FOR RS.2,98,000

Writ disposed without examining merits; petitioner relegated to paragraph 6.5(b). ¶ 6

